

Administration and Personnel Code, 2026

The Band Manager, merit hiring, conduct of employees, political neutrality, and the duty to refuse unlawful directions

Draft for adoption by Council and ratification by the Electors | September 30, 2026

Status	Draft for adoption by Council Resolution and ratification by the Electors in a Ratification Vote.
Works with	Governance Constitution (Document 03), section 11. Council Procedure By-law (Document 06), section 7. Conduct and Conflict of Interest Code (Document 07), Part 7. Whistleblower Protection Code (Document 15).
Amendment	The provisions listed in section 18.2 require a Ratification Vote.
Legal review	To be reviewed by legal counsel before adoption, including on the employment law that applies to the First Nation.

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ADMINISTRATION AND PERSONNEL CODE OF THE FORT McMURRAY No. 468 FIRST NATION, 2026

WHEREAS the employees of the First Nation serve all Members impartially, and are not the employees of any individual member of Council; and

WHEREAS hiring on merit through open competition, and a written chain of direction from Council as a whole to the Band Manager, protect employees from pressure and protect Members from favouritism;

NOW THEREFORE the Council of the Fort McMurray No. 468 First Nation adopts this Code, subject to ratification by the Electors:

Part 1 **Interpretation and Application**

1 Citation and Application

- 1.1 This Code may be cited as the *Administration and Personnel Code of the Fort McMurray No. 468 First Nation, 2026*.
- 1.2 This Code applies to every employee of the First Nation. Each First Nation Business Entity shall adopt hiring and conduct rules at least as strict as Parts 3, 5, and 6.
- 1.3 This Code operates together with the employment standards, labour relations, human rights, and occupational health and safety laws that apply to the First Nation, including the *Canada Labour Code* and the *Canadian Human Rights Act* where they apply. Where this Code gives an employee less than such a law, the law applies.

2 Definitions

- 2.1 In this Code:
 - (a) "Direction Log" means the log kept under section 5;
 - (b) "Employee" means a person employed by the First Nation, including a casual, term, or acting employee;
 - (c) "Hiring Panel" means a panel established under section 8;
 - (d) "Personnel Policy" means the personnel policy adopted under section 11;
 - (e) "Related Person" has the meaning given in the Spending and Contracts Code; and
 - (f) "Senior Employee" means the Band Manager, the Finance Officer, and every Employee who manages a department or program.
- 2.2 A term used in this Code that is not defined in section 2.1 has the meaning given in the Governance Constitution or, until it is in force, in the Customary Election Regulations or the Council Procedure By-law.

Part 2

The Band Manager and the Chain of Direction

3 The Band Manager

- 3.1 The Band Manager is the senior Employee of the First Nation, reports to Council as a whole, carries out the Resolutions of Council, and supervises every other Employee directly or through other Senior Employees.
- 3.2 The Band Manager shall be hired by Resolution after a public competition under Part 3, on the recommendation of a Hiring Panel that includes at least one (1) person with professional human resources experience who is not a Member or an Employee.
- 3.3 The Band Manager's employment contract, other than personal contact details, shall be published, including the term, the remuneration, and any severance provision.
- 3.4 Council as a whole shall review the performance of the Band Manager each year against written objectives set by Resolution at the start of the year.
- 3.5 The Band Manager may be suspended or dismissed only by Resolution, made at a Council Meeting after the Band Manager has had an opportunity to respond, with the reasons recorded. The dismissal of the Finance Officer shall also be reported to the Finance and Audit Committee as the Financial Administration Code requires.

4 Direction of Employees

- 4.1 Council directs Administration only by Resolution delivered to the Band Manager. No member of Council shall direct, supervise, discipline, or evaluate any Employee.
- 4.2 A member of Council may ask an Employee for information about a matter in their Portfolio, through the Band Manager or as the Band Manager authorizes in writing. A member of Council shall not ask an Employee about an individual application, file, or decision assigned by a Document to a person or body other than Council, except as section 7.3 of the Conduct and Conflict of Interest Code permits.
- 4.3 An Employee who receives a direction or request from an individual member of Council shall refer it to the Band Manager.

5 Direction Log

- 5.1 The Band Manager shall keep a Direction Log recording each direction or request from an individual member of Council to the Band Manager or any Employee, other than a request for information under section 4.2, with the date, the member of Council, and the substance.
- 5.2 The Direction Log shall be available to the Integrity Commissioner, the Finance and Audit Committee, and the auditor at any time, and a summary of the number of entries for each member of Council shall be published each quarter.

Part 3

Hiring

6 Positions and Job Descriptions

- 6.1 Every position shall have a written job description stating its duties, qualifications, supervisor, and pay range. The list of positions and their pay ranges shall be published each year.
- 6.2 A new permanent position may be created only within the Approved Budget.

7 Open Competition

- 7.1 Every permanent or term position of more than six (6) months shall be filled by open competition, posted for at least fourteen (14) days on the website of the First Nation, at each band office, and by any other means that reaches Members living off the Reserves.
- 7.2 Where two (2) or more candidates are equally qualified, a qualified Member shall be preferred, as a program to improve the employment of Members consistent with the *Canadian Human Rights Act*.
- 7.3 A position may be filled on an acting basis without competition for up to six (6) months, once, while a competition is held.
- 7.4 Positions involving work with children, Elders, or other vulnerable persons require a criminal record and vulnerable sector check before hiring.

8 Hiring Panels

- 8.1 Every competition shall be decided by a Hiring Panel of at least three (3) persons, including the supervisor of the position and at least one (1) person from outside the department, who score each candidate against the job description using written criteria set before interviews.
- 8.2 No member of Council shall sit on a Hiring Panel, or contact a Hiring Panel or the Band Manager about a candidate, except for the hiring of the Band Manager under section 3.2, on which no more than two (2) members of Council may sit.
- 8.3 A member of a Hiring Panel who is a Related Person of a candidate shall declare it and shall be replaced.
- 8.4 The hiring of Immediate Family of a member of Council or of a Senior Employee shall be disclosed as section 11.3 of the Conduct and Conflict of Interest Code requires.

9 Election Periods

- 9.1 The restrictions on hiring during an election period and a Caretaker Period in sections 14.2 and 23.3 of the Customary Election Regulations apply to every hiring under this Code.

Part 4

Conditions of Employment

10 Employment Contracts

- 10.1 Every Employee shall have a written employment contract or letter of offer stating the position, the term, the pay, and the hours, and shall receive a copy of this Code and the Personnel Policy.

11 Personnel Policy

- 11.1 Council shall adopt by Resolution, and publish, a Personnel Policy consistent with this Code, covering hours of work, leave, benefits, performance reviews, training, health and safety, harassment and violence prevention, discipline, grievances, and termination.
- 11.2 The Personnel Policy shall be reviewed at least every three (3) years.

Part 5

Conduct and Discipline

12 Standards of Conduct

- 12.1 Every Employee shall serve every Member impartially and courteously, whether the Member lives on or off a Reserve, and regardless of the Member's family, political views, or support for any candidate.
- 12.2 Every Employee shall keep Confidential Information and Personal Information confidential as the Access to Information and Privacy Code requires.
- 12.3 Every Employee who is an Official under Part 7 of the Conduct and Conflict of Interest Code shall comply with that Part.

13 Duty to Refuse Unlawful Directions

- 13.1 An Employee who receives a direction that would require the Employee to breach a Document of the First Nation or the law, including a direction to make an unauthorized payment, to allocate a benefit out of order, to withhold a Record without an Exception, or to act on a decision that is not a Resolution, shall refuse it in writing, giving the reason, and shall send a copy to the Band Manager and, where it concerns money, to the Finance Officer and the Finance and Audit Committee.
- 13.2 Where the direction comes from the Band Manager, the copy shall go to the Integrity Commissioner.
- 13.3 An Employee who refuses or reports under this section in good faith is protected under the Whistleblower Protection Code.

14 Discipline

- 14.1 Discipline shall be for just cause, proportionate, and progressive, except where the misconduct is serious enough to justify immediate action.
- 14.2 Before discipline is imposed, the Employee shall be told the allegation in writing and given an opportunity to respond, with a representative of their choice.
- 14.3 An Employee may grieve discipline or dismissal under the grievance procedure in the Personnel Policy, which shall provide for a final decision by a person who did not make the original decision. Nothing in this Code limits a right the Employee has under a statute or collective agreement.

Part 6

Political Neutrality

15 Elections and Votes

- 15.1 An Employee may vote, sign petitions, and be a candidate in an Election or vote of the First Nation, subject to the leave required by section 12.19 of the Customary Election Regulations.
- 15.2 No Employee shall campaign for or against a candidate or question while on duty, or use the funds, vehicles, equipment, or communications of the First Nation to do so.
- 15.3 No member of Council, candidate, or Senior Employee shall ask an Employee to support or oppose a candidate or question, or threaten or reward an Employee in connection with an Election or vote.

Part 7

Records and Reporting

16 Personnel Records

- 16.1 Personnel files are confidential and may be seen only by the Employee, the Band Manager, the Employee's supervisor, and persons who need them to carry out a duty under a Document of the First Nation or the law.

17 Annual Report

- 17.1 The Band Manager shall report each year to the Annual General Assembly the number of positions, vacancies, competitions held, hires, hires of Members, acting appointments, and departures, without names, and the number of entries in the Direction Log.

Part 8

Amendment and Coming into Force

18 Amendment

- 18.1 Council may amend this Code by Resolution after the proposed amendment has been published for at least thirty (30) days.
- 18.2 An amendment to Part 2, Part 3, section 13, Part 6, or this section has no effect unless it is approved by the Electors in a Ratification Vote.
- 18.3 Council may not suspend any provision of this Code.

19 Coming into Force and Transition

- 19.1 This Code comes into force on the date of the Resolution adopting it. Employees in their positions on that date continue in them.
- 19.2 Within one hundred and eighty (180) days after this Code comes into force, the Band Manager shall ensure that every position has a written job description and pay range, and Council shall adopt or confirm the Personnel Policy.
- 19.3 Council shall put this Code to the Electors for ratification within twelve (12) months after it comes into force.

Adopted by Council

Resolution No. and date

Signature of Chief

Signature of Councillor

Ratified by the Electors

Date of vote and votes for / against / total
Electors on the List

Signature of the Electoral Officer

Explanatory Notes

1. Purpose

This Code sets how the administration of the First Nation is directed, how people are hired, how employees are protected from pressure, and how they serve Members. These notes are not part of the Code.

2. Key provisions

- Council directs Administration only by Resolution to the Band Manager. No individual member of Council directs any employee (section 4).
- A Direction Log records every direction or request from an individual member of Council, and a count is published each quarter (section 5).
- Open competition for every position over six months, with written criteria and a panel of three. Members of Council do not sit on hiring panels except for the Band Manager (sections 7, 8).
- Qualified Members are preferred where candidates are equal (section 7.2).
- Employees must refuse unlawful directions in writing, and are protected when they do (section 13).
- Employees do not campaign on duty, and no one may pressure an employee to support a candidate (section 15).

3. Legal sources

Source	Provision
Canada Labour Code	Federal employment standards, including unjust dismissal protection, where federal jurisdiction applies to the First Nation's employees
Canadian Human Rights Act, s. 16	Special programs to improve opportunities for a disadvantaged group
Governance Constitution (Document 03), s. 11	Employees serve all Members impartially and are not directed by individual members of Council

4. Records required before adoption

- The current personnel policy, organizational chart, job descriptions, and the Band Manager's contract.
- Advice from legal counsel on whether federal or provincial employment law applies to each group of employees.